

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF KANSAS
AT WICHITA, KANSAS**

KAY ROGERS,	)	
	)	
Plaintiff,	)	
vs.	)	Case No.
	)	
BAYER U.S. LLC,	)	
	)	
Defendant.	)	
_____	)	

COMPLAINT

Plaintiff, Kay Rogers by and through her counsel, Christopher J. Omlid and Dustin L. DeVaughn of DeVaughn James Injury Lawyers, and for Plaintiff’s claims against the Defendant, alleges and states:

A. PARTIES

1. Plaintiff is a citizen of the State of Oklahoma, and resides at 13803 W. 111th St. S. Sapulpa, OK 74066.

2. Upon information and belief, the Defendant, Bayer U.S. LLC., is a foreign limited liability company organized in the State of Delaware, with its principal place of business in Whippany, New Jersey, which is where the President of Bayer U.S. LLC is located. The other officers of Bayer U.S. LLC are located in other offices outside of the State of Oklahoma (either Whippany, NJ; Pittsburgh, PA; or St. Louis, MO). The directors of Bayer U.S. LLC are located in Whippany, New Jersey; St. Louis, Missouri; and Leverkusen, Germany. Bayer U.S. LLC, may be served through its resident agent, Corporation Service Company, 2900 SW Wannamaker Dr., Ste. 204, Topeka, Kansas 66614.

3. Upon information and belief, Bayer U.S. LLC has a single member, which is Bayer Corporation. Bayer Corporation is, and since the commencement of this action has been, a corporation organized under the laws of the State of Indiana. Bayer Corporation's principal place of business is located in Whippany, New Jersey. Bayer Corporation's headquarters are located in Whippany, New Jersey. Bayer Corporation's executive officers work out of the corporate offices in Whippany, New Jersey; Pittsburgh, Pennsylvania; or St. Louis, Missouri, and none of its executive officers are based in Oklahoma. Bayer Corporation's corporate minute books and records are maintained and located in Whippany, New Jersey; Pittsburgh, Pennsylvania; or St. Louis, Missouri, and these are the locations where the majority of Bayer Corporation's executive and administrative functions are performed. Bayer Corporation has no employees and its tangible property is predominantly located in Pennsylvania.
4. Neither Bayer Corporation nor Bayer U.S. LLC is incorporated in the State of Oklahoma. Neither Bayer Corporation nor Bayer U.S. LLC has its headquarters or executive offices in the State of Oklahoma nor is either of these entities organized under the laws of the State of Oklahoma.

B. JURISDICTION AND VENUE

5. This Court has jurisdiction over the persons and subject matter.
6. Venue is proper in the Wichita division of the Kansas District Court of the Federal District Court.
7. This collision took place in Harvey County, Kansas on April 23, 2020.

8. This action is brought pursuant to 28 U.S.C. Section 1332(a) on the basis of diversity of citizenship. The matter is in excess of the sum of Seventy-Five Thousand Dollars (\$75,000.00) exclusive of interest and costs.

C. NATURE OF ACTION

9. This is a civil action for personal injuries suffered by Plaintiff, Kay Rogers.
10. This action arises out of a motor vehicle collision on West Highway 50 and South Ridge Road in Harvey County, Kansas on April 23, 2020.
11. Plaintiff was stopped on West Highway 50 waiting to turn South onto Ridge Road when a vehicle being operated by Larry L. Koehn and owned by Defendant, Bayer U.S. LLC and struck the rear of Plaintiff's vehicle.

D. CAUSE OF ACTION - NEGLIGENCE

12. At all times relevant herein, Larry L. Koehn was an employee and/or agent of Defendant, Bayer U.S. LLC, and was operating in the course and scope of his employment with Defendant, Bayer U.S. LLC.
13. Larry L. Koehn was hired, supervised, and trained by Defendant, Bayer U.S. LLC.
14. The actions and omissions of Defendant, Bayer U.S. LLC (independently and through driver, Larry L. Koehn under Respondeat Superior and Vicarious Liability) was negligent and careless for the following reasons:
 - a. Operating a motor vehicle too fast for conditions;
 - b. Following too closely;
 - c. Inattentive operation of a motor vehicle;
 - d. Failure to maintain a proper lookout;
 - e. Failure to drive with reasonable care;

- f. Failure to give warning;
 - g. Driving while distracted, possibly by a cell phone;
 - h. Failure to drive at a safe speed;
 - i. Failure to maintain control of a motor vehicle; and
 - j. Failure to take evasive action.
15. Defendant, Bayer U.S. LLC was further negligent by failing to properly hire, train, and supervise its employees and/or agents, including Larry L. Koehn, in a way that would ensure their operation of motor vehicles in a safe and prudent manner to prevent harm to other motorists.
16. The negligence of Defendant, Bayer U.S. LLC and its employee/agent, Larry L. Koehn directly and proximately caused the motor vehicle collision and the personal injuries and damages of Plaintiff, Kay Rogers.
17. Upon information and belief, the motor vehicle being operated by Larry L. Koehn was owned, maintained, dispatched, supervised, controlled and repaired by Defendant, Bayer U.S. LLC and was used as a commercial motor vehicle.
18. As a result of the negligence of Defendant, Bayer U.S. LLC and their employee, Larry L. Koehn, Plaintiff sustained severe personal injuries. Plaintiff has or is expected to sustain past medical expenses, future medical expenses, past and future economic damages, medical mileage, and past and future non-economic damages such as pain, suffering and mental anguish.

WHEREFORE, Plaintiff prays for judgment against Defendant in an amount in excess of Seventy-Five Thousand Dollars (\$75,000.00), for costs herein, and for such other and further relief as the Court deems just and equitable.

Respectfully submitted,

DeVaughn James Injury Lawyers

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DEMAND FOR PRETRIAL CONFERENCE AND JURY TRIAL

Plaintiff demands a pretrial conference and trial by a jury in this matter.

DESIGNATION FOR PLACE OF TRIAL

Plaintiff designates Wichita, Kansas as the place for trial of this matter.

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